

IN THE MUNICIPAL COURT OF THE CITY OF JACKSON, MISSISSIPPI

CITY OF JACKSON

PLAINTIFF

VS.

CASE NO. 2024-MC-001234

MORGAN SAMPLE

DEFENDANT/PETITIONER

PETITION FOR EXPUNCTION OF RECORD

COMES NOW Morgan Sample, Petitioner in the above-styled and numbered cause, appearing pro se, and files this Petition for Expunction of Record pursuant to Miss. Code Ann. Section 99-19-71(4), and in support thereof would show unto the Court the following, to-wit:

1.

Miss. Code Ann. Section 99-19-71(4) provides that, upon petition therefor, a justice, county, circuit, or municipal court shall expunge the record of a case in which an arrest was made, the person arrested was released, and the case was dismissed, the charges were dropped, there was no disposition of the case, or the person was found not guilty at trial.

2.

Petitioner was arrested on or about January 10, 2024 in Jackson, Hinds County, Mississippi, within the jurisdiction of this Court, by Jackson Police Department and was charged with Simple possession of marijuana, classified in the record as Misdemeanor, as stated on the synthetic docket, in violation of Miss. Code Ann. Section 41-29-139(c)(2)(A). Petitioner was thereafter released following the arrest, as confirmed by January 10, 2024 release confirmed by the synthetic booking record. The certified court record states that on or about May 3, 2024 the case ended as follows: Charge dropped. The statutory case-ending category is Charges dropped. A certified copy of the disposition is attached as Exhibit A. A copy of the docket sheet is attached as Exhibit B.

3.

Petitioner has experienced adverse employment and background-screening consequences connected with the arrest record.

4.

Petitioner is entitled to expunction of the aforesaid arrest record pursuant to Miss. Code Ann. Section 99-19-71(4), and the interests of justice would be served by granting the requested relief.

5.

Petitioner presents the following relevant identifying information in support of this Petition:

- (a) Name used at the time of arrest: Morgan Sample
- (b) Aliases shown on the record: None shown on the synthetic docket
- (c) Date of Birth: April 12, 1990
- (d) Social Security Number: XXX-XX-6789
- (e) Date of Arrest: January 10, 2024
- (f) Arresting Agency: Jackson Police Department
- (g) Agency Number: JPD-2024-009876
- (h) Charge at Arrest: Simple possession of marijuana
- (i) Code Section or Ordinance: Miss. Code Ann. Section 41-29-139(c)(2)(A)
- (j) Charge Classification: Misdemeanor, as stated on the synthetic docket
- (k) Race: Black
- (l) Sex: Female

WHEREFORE, PREMISES CONSIDERED, Petitioner respectfully prays that this Honorable Court enter an Order of Expunction directing that all records of the arrest and charge described herein be expunged and that the Clerk forward a certified, sealed copy of the Order and the approved MCIC identifier material to the Mississippi Department of Public Safety, Criminal Information Center, Jackson Police Department, and these other recordkeeping agencies identified from the record: Hinds County Sheriff's Office.

Respectfully submitted

Morgan Sample, Petitioner, Pro Se

MORGAN SAMPLE

123 Magnolia Avenue, Jackson, Mississippi 39201

Telephone: 601-555-0142

Email: morgan.sample@example.test

VERIFICATION

I, Morgan Sample, being first duly sworn, state that I am the Petitioner in this action; that I have read the foregoing Petition for Expunction of Record; and that the factual statements contained in the Petition are true and correct to the best of my knowledge, information, and belief.

MORGAN SAMPLE, PETITIONER PRO SE

STATE OF MISSISSIPPI

COUNTY OF _____

Signed and sworn to or affirmed before me on this _____ day of _____, 20____, by Morgan Sample.

NOTARY PUBLIC

Printed Name: _____

My Commission Expires: _____

Commission Identification No.: _____

[OFFICIAL NOTARY STAMP]

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VS.

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DEFENDANT/PETITIONER

ORDER GRANTING EXPUNCTION OF RECORD

THIS CAUSE came on for consideration of the Petition for Expunction of Record. The Court, having considered the Petition and the record and being satisfied that it has jurisdiction over the parties and subject matter, FINDS, ORDERS, AND ADJUDGES as follows:

1.

This Court handled the above-styled and numbered case and has authority to consider the requested relief.

2.

Morgan Sample was arrested on January 10, 2024 by Jackson Police Department for Simple possession of marijuana, classified as Misdemeanor, as stated on the synthetic docket, in violation of Miss. Code Ann. Section 41-29-139(c)(2)(A).

3.

Petitioner was released following the arrest, as confirmed by January 10, 2024 release confirmed by the synthetic booking record.

4.

The case ended on May 3, 2024 with this disposition: Charge dropped. The disposition falls within the statutory category Charges dropped.

5.

Petitioner is entitled to expunction under Miss. Code Ann. Section 99-19-71(4).

The record subject to this Order is identified as follows:

- (a) Name used at the time of arrest: Morgan Sample
- (b) Aliases shown on the record: None shown on the synthetic docket
- (c) Date of Birth: April 12, 1990
- (d) Social Security Number: Provided in the confidential MCIC addendum; last four 6789
- (e) Date of Arrest: January 10, 2024
- (f) Arresting Agency: Jackson Police Department
- (g) Agency Number: JPD-2024-009876
- (h) Charge at Arrest: Simple possession of marijuana
- (i) Code Section or Ordinance: Miss. Code Ann. Section 41-29-139(c)(2)(A)
- (j) Charge Classification: Misdemeanor, as stated on the synthetic docket
- (k) Race: Black
- (l) Sex: Female

IT IS ORDERED AND ADJUDGED that the record of the arrest and charge identified above in Case No. 2024-MC-001234 is expunged.

IT IS FURTHER ORDERED that the Mississippi Criminal Information Center and every other person or agency maintaining records within the scope of this Order shall purge, expunge, or destroy those records as required by Mississippi law, subject only to any nonpublic record of the expunction order expressly permitted to be retained by statute.

IT IS FURTHER ORDERED that the Clerk shall forward a certified copy bearing the Court's seal, together with the court-approved MCIC identifier material, to the Mississippi Department of Public Safety, Criminal Information Center, Jackson Police Department, and these additional custodians: Hinds County Sheriff's Office. The confidential MCIC identifier addendum is incorporated into the certified nonpublic processing copy when the court approves that method.

SO ORDERED AND ADJUDGED, this the ____ day of _____, 20____.

MUNICIPAL COURT JUDGE

APPROVED AS TO FORM

Optional block for the prosecuting authority when the court's local practice uses it.

PROSECUTING ATTORNEY

CERTIFIED TRUE COPY

The clerk completes this certification after entry of the Order and affixes the Court's seal.

MUNICIPAL COURT CLERK

Date: _____

[COURT SEAL]

CONFIDENTIAL MCIC IDENTIFIER ADDENDUM

COURT AND MCIC PROCESSING COPY - DO NOT INCLUDE IN PUBLIC OR SERVICE COPIES. This addendum uses the approved synthetic-review layout. A real packet requires the court of origin to confirm the identifier-delivery method before participant delivery.

Name used at the time of arrest: Morgan Sample

Aliases shown on the record: None shown on the synthetic docket

Date of Birth: April 12, 1990

Social Security Number: 111-22-6789

Date of Arrest: January 10, 2024

Arresting Agency: Jackson Police Department

Agency Number: JPD-2024-009876

Charge at Arrest: Simple possession of marijuana

Code Section or Ordinance: Miss. Code Ann. Section 41-29-139(c)(2)(A)

Charge Classification: Misdemeanor, as stated on the synthetic docket

Race: Black

Sex: Female

Court Case Number: 2024-MC-001234

Disposition: Charge dropped

Identifier Delivery Method: Confidential court-approved MCIC identifier addendum

Method Confirmation Source: Confirmed by Jackson Municipal Court Clerk's Office on
2026-09-03

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CERTIFICATE OF SERVICE

I, Morgan Sample, Petitioner pro se, certify that on the date stated below, I caused a true and correct copy of the foregoing Petition for Expunction of Record and proposed Order Granting Expunction of Record to be delivered to City Prosecutor for the City of Jackson. Service address: Synthetic confirmed service address: 101 Demo Court Plaza, Jackson, Mississippi 39201. The confidential MCIC identifier addendum must not be included in the service copy.

Method of service: _____

Date of service: _____

MORGAN SAMPLE, PETITIONER PRO SE